

CONSULTATION FEE AGREEMENT

(Information, Contract-Disposition and Transaction-Coordination Services)

REQUIRED DISCLOSURE — TEX. OCC. CODE § 1101.0045

SPC Homes LLC does not hold and will not hold legal title to 3011 Harlan Dr, Mesquite, Texas 75150. SPC Homes LLC holds only an equitable interest under a contract to purchase that property and is offering to sell, assign or release only that equitable interest. SPC Homes LLC is not a licensed real estate broker or sales agent.

Client initials: _____

This Consultation Fee Agreement (this "**Agreement**") is entered into and effective as of _____, 20____ (the "**Effective Date**"). If that blank is not completed, the Effective Date is the latest date shown in the signature blocks at the end of this Agreement, and if no signature date is shown, the date on which Consultant delivered the Information Package described in Section 3(c). This Agreement is by and between:

CONSULTANT:

SPC Homes LLC, a Texas limited liability company

4742 Benbrook Blvd, Fort Worth, Texas 76116

Phone: 817-697-2534

Email: info@spchomestx.com

(referred to as "**Consultant**" or "**SPC**")

CLIENT:

Name: _____

Entity type (LLC / corporation / partnership / trust / individual): _____

State of organization: _____

Address: _____

City / State / ZIP: _____

Phone: _____ Email: _____

(referred to as "**Client**")

Consultant and Client are each a "**Party**" and together the "**Parties**."

1. Recitals and Representations

The following recitals are **incorporated into and made a part of this Agreement as operative terms**. Each statement in subsections (a), (c) and (d) is a representation of Client on which Consultant relies in agreeing to deal with Client, and the statements in subsection (b) are representations of Consultant on which Client relies in entering this Agreement.

- (a) Client is a real estate investor acquiring for business or investment purposes, actively seeking residential investment property in the Dallas–Fort Worth market for its own account, and has the experience, capital and judgment to evaluate such property independently.
 - (b) Consultant is a real estate investment and acquisitions company operating in the Dallas–Fort Worth and Houston markets, acting at all times as a principal for its own account. Consultant is **not** a licensed real estate broker or salesperson, does not offer brokerage services, and is not engaged to offer them. Consultant acquires contract rights in property for its own account and disposes of those rights, and provides the informational and administrative services described in Section 3, for a fee.
 - (c) Through its own marketing spend, research, lead generation and direct outreach, Consultant identified the Subject Property described in Section 4 and contracted with its record owner for Consultant's own account. Client represents and warrants that, before Consultant's disclosure, Client did not know that the Subject Property was or might be available for purchase and had not been in contact with its owner regarding a possible sale. If Client knew of the Subject Property or had contacted its owner before Consultant's disclosure, Client shall so notify Consultant in writing before signing, and either Party may then terminate this Agreement with no Consultation Fee and no cost reimbursement owed.
 - (d) Client wishes to engage Consultant on the terms of this Agreement in connection with Client's potential acquisition of the Subject Property, and Consultant wishes to proceed on those terms.
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2. Nature of This Agreement; Disclosure of Consultant's Position

- (a) **Consulting and contract-disposition agreement only.** This Agreement is a contract for the services and the contract disposition described below. It is **not** itself an assignment of any contract or option, it is not a purchase and sale contract, and Consultant is not conveying, and does not agree to convey, title to the Subject Property to Client under this Agreement. Client will acquire title, if at all, directly from the record owner (the "**Seller**") under a separate purchase and sale contract between Client and Seller (the "**PSA**") to which Consultant is not a party.
- (b) **Consultant's interest — required disclosure.** As of the Effective Date, Consultant holds an equitable interest in the Subject Property under a written contract to purchase with the record owner dated _____. Consultant will not execute this Agreement, and no Consultation Fee is payable, unless Consultant holds that contract as of the Effective Date. A written summary identifying the parties, the property and the contract date is attached as **Exhibit A**. Consultant is not the record owner of the Subject Property and is selling, assigning or releasing only that equitable interest. This subsection is an affirmative written disclosure made under Tex. Occ. Code § 1101.0045, and Consultant shall make any further disclosure required by law in the form and at the time the law requires.

Disposition. Consultant shall terminate or release of record its contract with the record owner at or before Client's closing, so that Client contracts and closes directly with Seller. Consultant shall execute and deliver to the Title Company, no later than **ten (10) business days** before the scheduled closing, a release or termination of that contract and of any memorandum, affidavit or notice of it filed of record, in recordable form and acknowledged before a notary public, sufficient for the Title Company to delete the related exception from the title commitment. Consultant shall bear the recording cost.

Completion. Consultant shall complete the contract-date blank and attach Exhibit A before this Agreement is executed, and shall deliver to the Title Company, within three (3) business days after the Effective Date, a written statement identifying the date and parties of its contract with the record owner and the disposition required by this subsection. This Agreement may not be delivered to the Title Company under Section 5(e) while this subsection is incomplete. In no event does the failure to complete a blank or an initial line in this subsection excuse, reduce, defer or invalidate Client's obligation to pay the Consultation Fee.

(c) **Covenant; no assignment plus fee.** The disposition required by subsection (b) is a covenant of Consultant. Consultant shall not charge the Consultation Fee in any transaction in which Consultant takes title to the Subject Property or executes a written assignment transferring to Client Consultant's rights as buyer under Consultant's purchase contract with Seller. If Consultant takes title, this Agreement terminates automatically upon Consultant's acquisition of title, no Consultation Fee is payable, and Consultant's sole compensation is the resale price stated in a separate written purchase and sale contract between Consultant and Client. For the avoidance of doubt, Consultant's termination, release, cancellation, expiration or non-exercise of its own contract with Seller is **not** an "assignment" for purposes of this subsection and does not reduce, excuse or affect Client's obligation to pay the Consultation Fee.

(d) **Seller disclosure.** Consultant represents that, at or before execution of Consultant's contract with Seller, Consultant delivered to Seller a written disclosure stating that Consultant holds or will hold only an equitable interest under a contract to purchase, that Consultant does not and will not hold legal title, that Consultant may sell, assign or release that interest to a third party for a profit, and that Consultant is not a licensed real estate broker or sales agent. A copy of that disclosure, signed or initialed by Seller, is attached as **Exhibit B**. Consultant's failure to attach Exhibit B voids the Consultation Fee.

Consultant initials: _____ Client initials: _____

3. Scope of Services

Consultant has rendered, is rendering, or will render the following services (the "**Services**"):

(a) **Consultant's own acquisition activity.** Consultant identified the Subject Property through its own marketing spend, data research, lead generation and direct outreach, and contracted with the record owner for its own account.

(b) **Delivery of information about property Consultant controls.** Consultant holds a contractual right to acquire the Subject Property and delivers the information package described in subsection (c) so Client may evaluate whether to acquire Consultant's contract position or to acquire from Seller after Consultant releases that position. Consultant acts solely as a principal

for its own account, does not represent Client or Seller, does not negotiate for either, and does not procure a purchaser or a seller for any other person. Consultant does not act for Seller, does not act as agent for any person, and does not perform for another person any act enumerated in Tex. Occ. Code § 1101.002(1)(A). Consultant's disclosure of the Subject Property is made in connection with, and as an incident to, Consultant's disposition of its own contractual position in the Subject Property as disclosed in Section 2(b), and Consultant acts throughout in its own economic interest as a principal.

- (c) **Information package.** Assembly and delivery to Client of a property information package (the "**Information Package**"), which may include interior and exterior photographs, a condition and scope-of-work summary (including known roof, HVAC, foundation and cosmetic items), publicly available comparable-sales data and third-party contractor bids, without any opinion of value by Consultant, and tax, lot and ownership data.
- (d) **Access.** Under its own contract with Seller, Consultant will relay to Seller a single request for Client access. All scheduling, entry, inspections and vendor visits are arranged directly between Client and Seller or Seller's representative. Consultant does not conduct, host or attend showings of the Subject Property on behalf of Client or Seller.
- (e) **Title coordination.** Opening and coordinating the transaction file with **Capital Title** (together with any successor or substitute closing agent, the "**Title Company**"), delivering Consultant's own transaction documents to the Title Company, and coordinating regarding the release of Consultant's contract position and closing logistics.
- (f) **Transaction coordination.** Ongoing administrative coordination solely between Client and the Title Company regarding the release or transfer of Consultant's contract position and the disbursement described in Section 5. Consultant does not communicate with Seller on Client's behalf, does not negotiate any term of the PSA, and does not coordinate Client's lender, contractors or vendors.
- (g) **Limits on the Services.** Consultant does not list property for sale, does not solicit listings, does not show property as an agent for any person, does not negotiate any term of the PSA for Client or Seller, does not procure a purchaser or a seller for any other person, and receives no part of the purchase price from Seller. If any act described in this Section is determined by a court or by the Texas Real Estate Commission to require a license under Chapter 1101 of the Texas Occupations Code, that act is deemed withdrawn from the Services as of the Effective Date, is deemed never to have been offered or performed, and no part of the Consultation Fee is consideration for it; the Consultation Fee remains payable solely as consideration for Consultant's release or transfer of its contract rights under Section 2(b), which the Parties agree is independent consideration requiring no license, and any such determination shall be given effect by severance under Section 17(h).
- (h) **Disclosure in all communications.** Consultant has included, and will include, the disclosure appearing at the top of page 1 of this Agreement verbatim and in writing in every advertisement, email, text message, flyer, buyers-list communication and offering communication concerning the Subject Property.

Client acknowledges that the services in subsections (a), (b) and (c) have already been substantially performed as of the Effective Date and that the Services in subsections (d), (e) and (f) remain to be performed after the Effective Date. **Client further acknowledges and agrees that the Consultation Fee is supported by present, continuing and independent consideration, including Consultant's performance of the Services in subsections (d) through (f), Consultant's agreement in Section 5(c) to defer collection and to waive collection under Section 13, Consultant's forbearance from marketing the Subject Property to other prospective buyers during the Protection Period, and Consultant's disposition of its own position under Section 2(b); and Client irrevocably waives any defense of want of consideration, failure of consideration, or past consideration.**

4. Subject Property

The "**Subject Property**" is the real property and improvements commonly known as:

3011 Harlan Dr, Mesquite, Texas 75150, Dallas County, Texas

Reported characteristics: 3 bedrooms / 2 bathrooms, approximately 1,664 square feet, two-story, built 1963, on a lot of approximately 7,200 square feet ($\pm$ 0.17 acre), together with all improvements. Reported condition: full rehabilitation required, including roof, HVAC and foundation work plus cosmetic refresh.

Legal description (per title commitment, which controls):

Record owner / Seller: _____.

Consultant's purchase contract with the record owner is dated: _____.

Client's purchase contract with Seller is dated: _____.

Title Company GF / File No.: _____ (to be inserted when assigned; Client shall notify Consultant of the GF number within two (2) business days after it is assigned).

Marketed terms: purchase price to Client of **\$165,000.00**, cash or hard money, sold strictly AS-IS, closing on or before **September 26, 2026** at the Title Company.

The stated purchase price, characteristics and condition are marketing information and estimates only and are subject to Section 8. The closing deadline and closing location stated above are not estimates and are binding on Client as provided in Section 12(c).

5. Consultation Fee

(a) **Amount.** Client shall pay Consultant a flat consultation fee of \$ _____
(_____ and No/100 Dollars) (the "**Consultation Fee**"). The **Consultation Fee must be written into this blank in both figures and words and separately initialed by both Parties at signing. If the blank is not completed and initialed at signing, no Consultation Fee is payable and this Agreement is void.** The amount stated in this

Section 5(a) controls over any different amount stated on the Authorization to Title Company page.

Consultant initials: _____ Client initials: _____

- (b) **Consideration; earned.** The Consultation Fee is consideration for (i) the Information Package delivered under Section 3(c) and (ii) Consultant's release or transfer of Consultant's own contractual rights in the Subject Property under Section 2(b), and is earned when that release or transfer is effective. The amount of the fee is fixed as of the Effective Date. It does not change, increase or decrease if the purchase price is renegotiated up or down, or based on Client's resale price or profit. **The Information Package is conclusively deemed delivered, and that element of consideration satisfied, upon the earlier of (i) Consultant's transmission of the package, or of a link to it, by email, text message or file-sharing service to Client at any address or number Client has used to communicate with Consultant, or (ii) Client's first showing, walk-through or inspection of the Subject Property. No acknowledgment, acceptance or approval by Client is required, and no deficiency, omission or inaccuracy in the package affects the earning of the Consultation Fee.** If Client defaults as defined in Section 13(e) or breaches Section 10, the Consultation Fee is deemed fully earned as of the date of that default or breach.
- (c) **Deferred collection.** Consultant's release or transfer of its contract position occurs at or before closing; payment at closing reflects the timing of that transfer and is not contingent compensation for procuring a sale. Consultant agrees as an accommodation to **defer collection** of the Consultation Fee until closing, and to **waive collection** in the circumstances described in Section 13. That deferral and waiver are a payment accommodation for Client's benefit only and do not condition the amount of the fee on the sale price or on any resale.
- (d) **When payable.** Subject to Section 13, the Consultation Fee is **due and payable at closing** of Client's acquisition of the Subject Property, **disbursed by the Title Company at closing out of Client's funds**, and shown as a line item payable to SPC Homes LLC on the settlement statement, closing disclosure or other closing statement.
- (e) **Irrevocable direction to the Title Company; security.** Client **irrevocably authorizes, instructs and directs** the Title Company to disburse the Consultation Fee to SPC Homes LLC at closing, from Client's funds, **before disbursement of any remaining funds to Client**, and to reflect it as a line item on the settlement statement. **This direction is coupled with an interest**, is given for consideration, and **may not be revoked, amended, conditioned or countermanded by Client** without Consultant's prior written consent. Client shall promptly sign any closing instruction letter, disbursement authorization or settlement statement the Title Company reasonably requires to carry this out. **If Client fails to do so, this Agreement itself constitutes Client's standing written instruction to the Title Company, and Consultant may deliver a copy of this Agreement to the Title Company as Client's direction to pay. In addition, and as security for and in satisfaction of Client's payment obligation, Client hereby absolutely assigns to Consultant, and grants Consultant a continuing security interest in, Client's right to receive, and the funds constituting, that portion of Client's closing funds and closing-proceeds account equal to the Consultation Fee, effective upon deposit of those funds with the Title Company. Client authorizes Consultant to file a UCC-1 financing statement**

describing that collateral and this Agreement. Consultant's right to payment is absolute and is not conditioned upon, and is not impaired by, the Title Company's willingness or ability to honor this direction.

- (f) **Settlement statement; payee information; acknowledgment not a condition.** Client authorizes and directs the Title Company to deliver to Consultant copies of the draft and final settlement statement (and, if applicable, Client's closing disclosure) showing the Consultation Fee line item, and to communicate directly with Consultant regarding the calculation and disbursement of the Consultation Fee. The draft shall be delivered to Consultant at least **forty-eight (48) hours** before the scheduled closing. Consultant shall deliver to the Title Company, no later than five (5) business days before the scheduled closing, a completed IRS Form W-9 and its written payment instructions (payee name, remittance address, and if payment is by wire, bank name, ABA and account number, to be confirmed by the Title Company by telephone to a number Consultant independently provides). Client shall disclose this Agreement and the Consultation Fee line item to any lender financing Client's acquisition and shall obtain that lender's written consent to the line item no later than five (5) business days before closing, furnishing Consultant a copy on request. Client shall request the Title Company's acknowledgment on the Authorization page and shall deliver a signed copy of that page to the Title Company and to Consultant promptly after execution of this Agreement, using commercially reasonable best efforts to obtain the acknowledgment. **The Title Company's refusal, failure or inability to sign that acknowledgment, to accept this direction, or to disburse the Consultation Fee is not a condition to closing, is not a default by either Party, and is not a condition to, defense to, or excuse for, Client's obligation to close or to pay. Any such refusal, failure or inability does not constitute a failure to close for a reason other than Client's default under Section 13(a), and instead triggers Client's direct payment obligation under Section 5(i). Client shall not solicit, encourage or acquiesce in any such refusal.** If the Title Company declines to sign the acknowledgment, closing shall proceed and Client shall instead deliver to Consultant, at least forty-eight (48) hours before the scheduled closing, the Title Company's written confirmation (email is sufficient) that the Consultation Fee appears as a line item payable to SPC Homes LLC on the draft settlement statement.
- (g) **Non-refundable; no offset.** Once earned, the Consultation Fee is non-refundable and is not subject to offset, reduction, deduction, holdback, escrow or recoupment for any reason, including the condition of the Subject Property, the accuracy of any estimate, Client's rehab costs, or Client's resale outcome.
- (h) **Character of the fee.** The Consultation Fee is a flat fee, fixed in amount, paid as consideration for the Information Package and for Consultant's disposition of its own contract position. It is **not** a real estate commission; **not** a percentage of, or measured by, the sale price or any resale price; and **not** compensation for representing Client, Seller or any other person in a real estate transaction. Consultant receives no portion of the purchase price, and the fee is not charged to, deducted from, or paid by Seller.
- (i) **Alternative payment.** If the Title Company declines or is unable to disburse the Consultation Fee at closing, Client shall pay it to Consultant by wire transfer or certified funds no later than one (1) business day after closing. Closing does not extinguish, satisfy or merge Client's obligation under

this Section. **Any amount not paid when due bears interest at the lesser of twelve percent (12%) per annum or the maximum lawful rate, from the due date until paid, and Client shall pay all costs of collection, court costs, expert fees and reasonable attorney's fees.**

6. No Agency, No Brokerage, Independent Contractor

- (a) **Not a broker.** Consultant is **not** a licensed real estate broker or sales agent under Chapter 1101 of the Texas Occupations Code, does not hold itself out as one, and holds itself out only as a principal investor.
 - (b) **No agency or fiduciary relationship.** Consultant is **not** the agent, representative, fiduciary, broker, employee, partner or joint venturer of Client or of Seller. Consultant owes Client no fiduciary duty, no duty of loyalty, and no duty to disclose anything beyond what this Agreement expressly requires. Client is not represented by Consultant and shall not represent to any third party that it is. **This subsection does not limit any disclosure Consultant is required by law to make, including the written disclosure required by Tex. Occ. Code § 1101.0045, which Consultant has made and will make to Client and to Seller.**
 - (c) **Independent contractor.** Consultant performs the Services as an independent contractor, for its own account, controlling its own methods, hours and means. Nothing in this Agreement creates a partnership, joint venture, agency or employment relationship.
 - (d) **No brokerage services.** Consultant does not list property, does not solicit listings, does not negotiate as an agent for compensation, does not procure prospects on behalf of an owner, and does not hold itself out as authorized to do so.
 - (e) **Consultant's economic interest.** Consultant acts in its own economic interest and profits from this transaction. Client waives any objection to that interest, which is fully disclosed by Section 2(b) and this subsection.
 - (f) **Other clients.** Consultant may acquire, market and dispose of positions in other properties, including properties competing with the Subject Property, for other clients, without restriction and without accounting to Client.
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7. No Legal, Tax, Financial or Professional Advice

- (a) Consultant does not provide, and has not provided, legal, tax, accounting, financial, investment, appraisal, brokerage, engineering, environmental, construction, insurance, lending or inspection advice or services.
- (b) No estimate, opinion, figure, repair budget, comparable sale, rent estimate, photograph or projection supplied by Consultant is an appraisal, an inspection report, a broker price opinion, a guarantee of value, or a recommendation to purchase. Estimates are opinions, not promises. **Consultant does not provide, and no part of the Consultation Fee is consideration for, any opinion of value, after-repair value, broker price opinion or appraisal. Any ARV or spread figure appearing in marketing material is a non-binding illustration, forms no part of the Services, and Client shall obtain its own appraisal.**

- (c) Client is a sophisticated investor purchasing for business or investment purposes and relies solely on its own independent investigation, its own professional advisors and its own judgment in deciding whether to acquire the Subject Property and at what price.
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8. Client Due Diligence; AS-IS, WHERE-IS

- (a) **Information not guaranteed.** All information Consultant has provided or will provide — including square footage, bedroom and bathroom count, year built, lot size, the stated \$165,000 price, any value or resale figure appearing in any marketing material, repair scope and cost estimates, roof, HVAC, foundation and structural condition, rents, comparables, occupancy, taxes, HOA, liens, title status, survey matters, permits and zoning — comes from sources believed reliable but is **NOT guaranteed, warranted or represented as accurate or complete** by Consultant. Actual results will vary.
- (b) **Client verifies everything.** Client shall independently verify all such information at its own expense, including through its own inspections, contractors, engineers, appraisers, surveyors, title examination and municipal inquiries. Client has had, or has knowingly waived, a full opportunity to inspect the Subject Property.
- (c) **AS-IS, WHERE-IS.** The Subject Property is sold strictly **AS-IS, WHERE-IS, WITH ALL FAULTS**, latent and patent, known and unknown. **CONSULTANT MAKES NO WARRANTY, EXPRESS OR IMPLIED, OF ANY KIND, INCLUDING ANY WARRANTY OF CONDITION, HABITABILITY, MERCHANTABILITY, SUITABILITY OR FITNESS FOR A PARTICULAR PURPOSE, AND ALL SUCH WARRANTIES ARE EXPRESSLY DISCLAIMED.**
- (d) **Disclaimer of reliance.** Client represents that in entering this Agreement and in deciding to acquire the Subject Property, Client is not relying, and will not rely, on any representation, warranty, promise, estimate, projection or statement of any kind by Consultant or anyone acting for Consultant that is not expressly written in this Agreement. Client has relied solely on its own inspection, investigation and advisors, with the advice of its own counsel. This disclaimer of reliance is a negotiated term, was specifically bargained for, and bars any claim of fraudulent inducement, negligent misrepresentation or reliance-based claim founded on any statement outside this Agreement.
- (e) **Release; liability cap.** Client releases Consultant and its members, managers, officers, employees and affiliates from any claim, loss, cost or damage arising out of the condition of the Subject Property, the accuracy of information provided, Seller's conduct, or Client's investment results. Consultant's total liability under this Agreement, on any theory, shall not exceed the Consultation Fee actually received by Consultant.

Client initials: _____

9. DTPA Waiver

WAIVER OF CONSUMER RIGHTS. *Client waives its rights under the Deceptive Trade Practices—Consumer Protection Act, Section 17.41 et seq., Business & Commerce Code, a law that gives consumers special rights and protections. After consultation with an attorney of Client's own selection, Client voluntarily consents to this waiver.*

- (a) Client is not in a significantly disparate bargaining position relative to Consultant.
- (b) Client is seeking and acquiring the Services and the Subject Property solely for business, commercial, investment or agricultural purposes and not for personal, family or household use; the Subject Property is not and will not be Client's residence; and the total consideration in this transaction and the related project exceeds \$100,000, so that Tex. Bus. & Com. Code § 17.49(g) applies in addition to the waiver in this Section.
- (c) **Client is in fact represented by legal counsel of Client's own selection** in seeking and acquiring the Services and in this transaction, and that counsel was not directly or indirectly identified, suggested or selected by Consultant or any agent of Consultant. Client shall not sign this Agreement without completing the following line:

Client's counsel — Name: _____ Firm: _____ State Bar No.: _____
Phone/Email: _____

- (d) If Client checks "No — knowingly waived" in Section 16, or does not complete subsection (c), **this Section 9 is void and of no force or effect** and the remainder of this Agreement is unaffected. If this waiver is otherwise held invalid or unenforceable in whole or in part, Sections 7, 8, 15, 16 and 17 remain in full force and effect, and Consultant's total liability remains capped as provided in Section 8(e).

This waiver is conspicuous, is in bold and italic type as required, and is knowingly and voluntarily given.

Client signature: _____ Date: _____

Printed name: _____

Client address: _____ Client initials: _____

10. Non-Circumvention

This Section is a material inducement to Consultant's disposition of its contract position and delivery of the Information Package.

- (a) **Covenant.** The "**Protection Period**" begins on the Effective Date and ends on the **latest** of (i) twenty-four (24) months after the Effective Date, (ii) eighteen (18) months after the date this Agreement terminates or expires under Section 14, and (iii) eighteen (18) months after the date any purchase contract or option for the Subject Property held by Consultant, Client or any Covered Person terminates or expires. During the Protection Period, no Covered Person shall, directly or indirectly, alone or through any third party, acquire, contract to acquire, option, lease with option to purchase, take an assignment of, take title to, take an equity or debt position in, or attempt any of the foregoing with respect to (i) the Subject Property, (ii) any other property Consultant identified and disclosed to Client in writing under this or any related engagement, or (iii) any other real property owned by Seller or by any entity Seller owns or controls, **in each case except in a closing at which the full Consultation Fee is paid to Consultant in immediately available funds. Breach of this Section is established by the occurrence of the prohibited act alone; no proof of intent, motive, purpose or bad faith is required, and**

Client's good faith, the absence of any then-outstanding fee obligation, and any prior waiver under Section 13(a) are not defenses. Nothing in this Section restricts Client from contacting, soliciting, negotiating with or contracting directly with Seller. Client's obligation under this Section is to pay the Consultation Fee in connection with any acquisition described above.

(b) **Covered Persons.** "**Covered Person**" means Client and each of Client's affiliates, parents, subsidiaries, principals, members, managers, officers, directors, partners, shareholders, employees, agents, brokers, attorneys, family members, lenders, capital and joint-venture partners, assignees, successors, nominees, entities under common ownership or control with Client, entities formed by or for Client, any Guarantor, and **any person or entity to whom Client or anyone acting for Client discloses the Subject Property or the Information Package.**

Client is responsible for each Covered Person's compliance as if it were Client's own act.

(c) **Covered workarounds.** Without limiting subsection (a), each of the following triggers this Section:

(i) **Different entity.** Closing in the name of a different individual, entity, trust, nominee, straw buyer, family member or affiliate than the Client named above.

(ii) **Lapse and re-contract.** Allowing this transaction, or any purchase contract or option for the Subject Property, to expire, lapse, terminate or be cancelled, and thereafter acquiring or contracting for the Subject Property within the Protection Period.

(iii) **Re-trade around the fee.** Renegotiating, restructuring, repricing or recharacterizing the transaction directly with Seller **in a manner that results in the Consultation Fee not being paid in full at closing, regardless of intent**, including recasting it as a note purchase, entity purchase, subject-to or seller-financed transaction.

(iv) **Pass-through.** Any person to whom Client or anyone acting for Client discloses the Subject Property acquiring or contracting for the Subject Property during the Protection Period.

(v) **Lender or partner takeout.** Client's lender, capital partner or joint venturer acquiring the Subject Property instead of Client.

(vi) **Successor route.** Acquiring the Subject Property through a note purchase, deed in lieu, foreclosure, tax sale, probate or successor-in-interest transaction, where the Covered Person learned of the Subject Property from Consultant.

(d) **Consequence — debt, not damages.** On breach of this Section, the full Consultation Fee stated in Section 5(a) becomes **immediately due and payable in full as a debt** for the Services already rendered and for Consultant's disposition of its contract position — not as damages, liquidated damages or a penalty — together with interest at the lesser of twelve percent (12%) per annum or the maximum lawful rate from the date of the circumventing contract or closing, plus all costs of collection, court costs, expert fees and reasonable attorney's fees.

(e) **Additional remedies.** Consultant may also seek injunctive relief and specific performance without bond, and a money judgment for the Consultation Fee. Remedies are cumulative.

(f) **Notice.** Client shall notify Consultant in writing within five (5) business days if any Covered Person contracts for, acquires, or is offered the Subject Property from any source other than through Consultant.

- (g) **Survival and reformation.** This Section survives closing, termination, expiration and non-closing for the full Protection Period. If its duration or scope is held excessive, it shall be reformed and enforced to the maximum extent Texas law allows.
- (h) **No recording.** Consultant shall not record this Agreement, or any memorandum, affidavit, notice, lien or lis pendens based on it, in the real property records of any county, and shall not deliver it to any closing agent other than the Title Company for this transaction (including any successor or substitute closing agent) except pursuant to a court order.
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11. Confidentiality

- (a) Client shall keep confidential, and shall not disclose to any third party, the Seller's identity and contact information, the Seller's circumstances, the deal terms, and the contents of the Information Package (collectively, "**Confidential Information**").
- (b) Client may disclose Confidential Information only to those of its lenders, attorneys, accountants, inspectors, contractors, insurers, title personnel and equity partners who need it to evaluate or close this transaction, and only after informing them of these restrictions. Client remains responsible for their compliance.
- (c) Confidential Information does not include information that is or becomes public through no act of a Covered Person, that Client can document it lawfully possessed without a duty of confidence before Consultant's disclosure, or that is required to be disclosed by law or court order (with prompt notice to Consultant where legally permitted and where subsection (e) does not apply). **Client may invoke the prior-possession exception only if, within three (3) business days after the Effective Date, Client delivers to Consultant written notice identifying the specific information and documenting the date, source and manner of Client's prior lawful possession, together with supporting records. Client irrevocably waives the exception as to any information not so identified, and any information not so identified is conclusively Confidential Information for all purposes of this Agreement, including Section 1(c) and Section 10.**
- (d) This Section survives for the Protection Period as defined in Section 10(a). A breach of this Section that results in any person acquiring the Subject Property is also a breach of Section 10.
- (e) **Regulatory carve-out.** Nothing in this Agreement restricts Client from disclosing any information to the Texas Real Estate Commission, the Texas Attorney General, any other governmental or regulatory authority, or Client's own counsel, and no notice to Consultant is required for any such disclosure.
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12. Client Covenants Regarding the Purchase Contract

Consultant is not a party to the PSA and does not set its terms. Client nevertheless covenants with Consultant, as an independent obligation under this Agreement, that:

- (a) **Execution of the PSA; bona fide offer.** Within **ten (10) business days** after the Effective Date, Client shall execute and deliver to Seller a bona fide written purchase and sale contract for the Subject Property at a cash purchase price of not less than **\$165,000.00** on the terms described

in Section 4, shall keep that offer open and in force, and shall not withdraw, reduce, condition or allow it to lapse without Consultant's prior written consent. Client shall deliver a copy of the executed PSA to Consultant within three (3) business days after execution. This covenant runs to Consultant only and imposes no condition on Seller or on the Title Company.

- (b) **Earnest money.** Client will deliver whatever earnest money the PSA requires, in the amount and on the terms the PSA provides. Consultant does not set the earnest money terms and has no interest in the earnest money. Client shall deliver proof of the Title Company's receipt to Consultant within one (1) business day after delivery. **Forfeiture of the earnest money is separate from, and does not satisfy, reduce or serve as liquidated damages for, any Consultation Fee owed under Section 10 or Section 13.**
- (c) **Closing.** Client will close **on or before September 26, 2026** at the Title Company, or on such later date as Client and Seller agree in writing. **Time is of the essence** as to every date and deadline in this Agreement.
- (d) **Terms.** Client will pursue the acquisition in all cash or with hard-money or other financing that does not require an appraisal contingency, lender-required repairs or a financing contingency. Client's inability to obtain financing does not excuse performance under this Agreement.
- (e) **Cooperation.** Client will cooperate in good faith with Consultant and the Title Company, will deliver required documents and funds on time, will promptly execute all closing documents, instructions and disbursement authorizations needed to pay the Consultation Fee under Section 5, and will not act or fail to act in a way that unreasonably delays or defeats closing.
- (f) **Notices and information rights.** Client shall deliver to Consultant: (i) a complete copy of the executed PSA and of each amendment, within three (3) business days after execution; (ii) written notice of the name, address, escrow officer, phone, email and GF/file number of the closing agent within three (3) business days after the file is opened, and written notice of any change of closing agent within one (1) business day; (iii) written notice of the scheduled closing and funding dates and of any change to either, promptly and in all events not less than five (5) business days before funding; and (iv) the draft settlement statement required by Section 5(f). **Client irrevocably authorizes Consultant to communicate directly with the Title Company and Client's lender regarding the status, scheduling and disbursement of this transaction, and to obtain copies of the title commitment and settlement statement, and Client shall promptly execute any authorization those parties require. Any failure to give a notice required by this subsection is Client's default under Section 13 and a breach of Section 10, and Consultant may, in addition to its other remedies, deliver a copy of this Agreement and the Authorization page to the closing agent handling the transaction.**

13. If the Transaction Does Not Close

- (a) **General rule — no closing, no fee.** If Client's acquisition of the Subject Property does not close for any reason **other than** Client's default or a breach of Section 10, Consultant **waives collection** of the unpaid balance of the Consultation Fee, Client owes no further Consultation Fee, and Consultant has no claim against Client for it. Consultant bears the risk that a sourced deal dies through no fault of Client. This is the bargained-for fairness of this Agreement.

- (b) **Cost reimbursement.** In the circumstance described in subsection (a), Client shall reimburse Consultant only for Consultant's documented out-of-pocket third-party costs advanced at Client's written request for this transaction (for example, inspections, survey or title charges Client asked Consultant to order), not to exceed **\$1,500.00**, payable within ten (10) days after Consultant delivers receipts. Consultant's own marketing, sourcing, labor and overhead are not reimbursable.
- (c) **Exceptions.** Subsection (a) does not apply, and the full Consultation Fee remains due and payable, if:
- (i) Section 10 (Non-Circumvention) is breached, in which case the fee is collectible as a debt under Section 10(d); or
 - (ii) closing fails because of Client's default, breach, or refusal to close on terms Client had agreed to, in which case the full Consultation Fee is **immediately due and payable as a debt for Services already rendered and fully earned under Section 5(b), and not as damages, liquidated damages or a penalty**, together with interest at the rate and collection costs provided in Section 10(d). The Parties expressly disclaim any characterization of the Consultation Fee as liquidated damages, and no analysis of Consultant's actual loss is relevant to its collection.
- (d) **No guarantee.** Consultant does not guarantee that Seller will perform, that the Subject Property will remain available, that title will be marketable, or that the transaction will close.
- (e) **"Client's default" defined.** For all purposes of this Agreement, "Client's default" means, without limitation: (i) failure to perform any covenant in Section 12, including the failure to execute and maintain the offer required by Section 12(a); (ii) offering, or insisting on, a price or terms less favorable to Seller than those in Section 4 without Consultant's written consent; (iii) failure to deliver earnest money or closing funds when due; (iv) termination of the PSA by Client for any reason other than Seller's default or Seller's failure to convey marketable title; (v) failure or refusal to close on or before the date required by Section 12(c); (vi) failure to give any notice required by Section 12; or (vii) any breach of Section 10, Section 11 or Section 15. Consultant's waiver under Section 13(a) does not apply to any non-closing to which Client's default contributed in any part.

14. Term and Termination

- (a) This Agreement begins on the Effective Date and ends on the earlier of (i) closing and payment of the Consultation Fee, or (ii) **twenty-four (24) months** after the Effective Date, **provided that the Protection Period in Section 10 and the confidentiality period in Section 11 run for their full stated terms notwithstanding the end of this Agreement**, and except for provisions that expressly survive.
- (b) Either Party may terminate this Agreement on ten (10) days' written notice if the PSA has been terminated or the Subject Property has become unavailable. Termination does not affect Sections 2, 5, 6, 7, 8, 9, 10, 11, 13, 15, 16 and 17, or any obligation accrued before termination.
- (c) **Notice and cure.** Except for a breach of Section 10 or Section 11 (which need no notice), a Party alleging breach shall give the other written notice describing it, and the breaching Party has five

(5) business days to cure before the non-breaching Party may pursue remedies. This subsection does not extend the closing date.

15. Assignment

- (a) Client may not assign, delegate or transfer this Agreement or any right or obligation under it, in whole or in part, without Consultant's prior written consent, which may be withheld in Consultant's sole discretion. Any attempted assignment without consent is void, does not release Client or any Guarantor, and is a breach of Section 10. Client's use of a different closing entity is governed by Section 10(c)(i).
 - (b) Consultant may assign, pledge or transfer its right to receive the Consultation Fee, in whole or in part, without Client's consent, and may direct the Title Company to disburse accordingly on written notice.
 - (c) Subject to the foregoing, this Agreement binds and benefits the Parties and their permitted successors and assigns.
-

16. Independent Counsel

Client acknowledges that: (a) Consultant advised Client, in writing by this Section, to have this Agreement reviewed by Client's own attorney, accountant and tax advisor before signing; (b) Client had a full and fair opportunity to do so; (c) any attorney Client consulted was selected by Client and was not directly or indirectly identified, suggested or selected by Consultant; and (d) Client obtained that review before signing or, if not, acknowledges the consequence stated below. Client is not relying on Consultant or Consultant's advisors for legal, tax or financial advice. This Agreement was negotiated at arm's length between sophisticated parties and shall not be construed against either Party as drafter.

Client obtained independent legal review: ☐ Yes ☐ No. Client initials: _____

If Client does not obtain independent legal review, Section 9 (DTPA Waiver) is void and of no effect; the remainder of this Agreement remains in full force.

17. General Provisions

- (a) **Governing law.** Texas law governs this Agreement, without regard to conflict-of-laws principles.
- (b) **Place of performance; venue.** The Consultation Fee and every other amount owed by Client under this Agreement are payable to Consultant **in Tarrant County, Texas**, which the Parties expressly name as the county of performance of Client's payment obligations for purposes of **Tex. Civ. Prac. & Rem. Code § 15.035**. Each Party consents to personal jurisdiction in Texas and to service as permitted by law. Venue for any suit arising out of or relating to this Agreement lies in any county permitted by Chapter 15 of the Texas Civil Practice and Remedies Code, including **Tarrant County** as the county of performance under § 15.035 and **Dallas County** as the county in which the Subject Property is located, and each Party waives any objection to venue in either county on grounds of inconvenience.

- (c) **Jury waiver.** EACH PARTY KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVES ANY RIGHT TO A TRIAL BY JURY IN ANY ACTION ARISING OUT OF OR RELATING TO THIS AGREEMENT. Each Party has had the opportunity to consult counsel about this waiver.
- (d) **Attorney's fees.** In any action to enforce or interpret this Agreement, the prevailing Party may recover its reasonable attorney's fees, court costs, expert fees and collection costs, at trial and on appeal.
- (e) **Notices.** Notices must be in writing and are effective on (i) hand delivery, (ii) one business day after deposit with a nationally recognized overnight courier, (iii) three business days after deposit in the U.S. mail, certified, return receipt requested, or (iv) email transmission with confirmation of delivery, in each case to the addresses in the Parties block or to any address a Party later designates by notice. If a Party's email address is not stated in the Parties block, notice to that Party may not be given by email and must be given by one of the other methods in this subsection. A Party may supply or change its notice email address by written notice given under this subsection.
- (f) **Entire agreement.** This Agreement, including its recitals and exhibits, is the entire agreement between the Parties on its subject matter and supersedes all prior or contemporaneous negotiations, marketing materials, emails, term sheets, letters of intent, drafts and oral or written understandings between them relating to the Subject Property, all of which are of no further force or effect. **Nothing in this subsection supersedes, limits or waives any disclosure required by law, including the disclosure required by Tex. Occ. Code § 1101.0045, which Consultant confirms it made in writing in its marketing communications concerning the Subject Property and repeats in this Agreement.**
- (g) **No oral modification; no waiver.** This Agreement may be amended only by a writing signed by both Parties. No delay or failure to enforce a right waives it, and a waiver on one occasion is not a waiver on any other.
- (h) **Severability.** If any provision is held invalid, illegal or unenforceable, it shall be reformed to the minimum extent necessary to be enforceable or, failing that, severed, and the remainder stays in full force.
- (i) **Survival.** Sections 2, 5, 6, 7, 8, 9, 10, 11, 13, 15, 16 and 17 survive closing, termination, expiration and non-closing.
- (j) **Counterparts; electronic signatures.** This Agreement may be signed in counterparts, each an original and all one instrument. Signatures delivered by PDF, scan, photograph, email, DocuSign or any comparable e-signature platform are valid, binding and enforceable to the same extent as original ink signatures under the Texas Uniform Electronic Transactions Act and the federal E-SIGN Act. Each Party consents to transacting electronically.
- (k) **Authority; entity documents.** Each person signing below represents that he or she is authorized to bind the Party for whom he or she signs. If Client is an entity, Client shall deliver to the Title Company, no later than five (5) business days before the scheduled closing, a certificate of formation or certificate of existence and a resolution, consent or excerpt of its governing agreement evidencing the signer's authority to bind Client and to execute the Authorization to Title Company page. Client shall not be a newly formed or asset-less entity unless the Personal

Guaranty below is executed by a natural person with a net worth of not less than the Consultation Fee.

- (l) **Headings.** Headings are for convenience only and do not affect interpretation.
- (m) **Blanks and defaults.** If the Effective Date blank is not completed, the Effective Date is the date determined under the introductory paragraph. **If the fee amount on the Authorization to Title Company page is not completed, or states an amount different from Section 5(a), the amount stated in Section 5(a) controls for all purposes and is the amount the Title Company is directed to disburse, and Consultant may complete or correct that blank on the Authorization page to conform to Section 5(a).** If any initial line or checkbox is not completed, that omission does not affect the validity or enforceability of the provision to which it relates or of this Agreement. Except for the Section 5(a) fee amount, which Section 5(a) requires to be completed, no incomplete blank renders this Agreement or the Consultation Fee uncertain, indefinite or unenforceable.

18. Client Acknowledgments

By signing, Client acknowledges that Client has read and understands each of the following:

- (a) Consultant is **not** a licensed real estate broker or sales agent and is not representing Client or Seller in any real estate transaction.
- (b) The Consultation Fee is a flat fee, fixed in amount, paid as consideration for the Information Package and for Consultant's disposition of its own contract position, and is not a commission.
- (c) Consultant acts as a principal in its own economic interest and profits from this transaction; Consultant holds an equitable interest in the Subject Property under a contract to purchase with the record owner, does not and will not hold legal title, and will release or transfer only that equitable interest, as disclosed on page 1 and in Section 2(b).
- (d) The Subject Property is sold AS-IS, WHERE-IS, with all faults, and Client relies solely on its own investigation and not on any statement of Consultant outside this Agreement.
- (e) Client was advised to obtain its own attorney before signing, and Section 9 (DTPA Waiver) is effective only if Client is in fact represented by counsel of its own selection.

Client initials: _____

SIGNATURES

CONSULTANT — SPC HOMES LLC

By: _____

Printed name: _____

Title: _____ Date: _____

CLIENT

Entity name (if applicable): _____

By: _____

Printed name: _____

Title: _____ Date: _____

PERSONAL GUARANTY

The undersigned individual ("**Guarantor**"), signing in his or her individual capacity and not on behalf of Client, absolutely, unconditionally and irrevocably guarantees to SPC Homes LLC the full and prompt payment when due of the Consultation Fee and every other amount owed by Client under this Agreement, together with interest and all costs of collection, court costs, expert fees and reasonable attorney's fees. This is a guaranty of payment and not of collection. Guarantor waives notice of acceptance, presentment, demand, protest, notice of dishonor or default, and any requirement that Consultant first proceed against Client, any other person, or any collateral. Guarantor's liability is joint and several with Client's and is not released, reduced or affected by any amendment, extension or indulgence, by the dissolution, insolvency, receivership or bankruptcy of Client, or by Client's use of a different closing entity. Guarantor is a Covered Person under Section 10 and is bound by Sections 10, 11, 15 and 17.

Guarantor signature: _____

Printed name: _____ Date: _____

AUTHORIZATION TO TITLE COMPANY

TO: Capital Title (or successor closing agent) — GF / File No.: _____

RE: 3011 Harlan Dr, Mesquite, Texas 75150, Dallas County, Texas

Legal description: _____ (per Title Company commitment, which controls).

Client's purchase contract with Seller dated: _____.

This page shall not be delivered to the Title Company with the GF/File No. blank.

The undersigned Client irrevocably authorizes and directs the Title Company to disburse a consultation fee of \$ _____ (_____ **and No/100 Dollars**) to **SPC Homes LLC** at closing of Client's acquisition of the above property, from Client's funds, before disbursement of any remaining funds to Client, and to reflect that disbursement as a line item on the settlement statement. If the amount above is left blank or differs from the amount stated in Section 5(a) of the Consultation Fee Agreement, the Section 5(a) amount controls and is the amount the Title Company is directed to disburse.

Client further authorizes and directs the Title Company to deliver to SPC Homes LLC copies of the draft and final settlement statement (and, if applicable, Client's closing disclosure) showing the consultation fee line item, and to communicate directly with SPC Homes LLC regarding the calculation and disbursement of that fee.

This direction is coupled with an interest and may not be revoked, modified or conditioned without the written consent of SPC Homes LLC. A copy of this page, or of the Consultation Fee Agreement to

which it relates, may be relied upon as Client's standing instruction.

Client signature: _____ Date: _____

Printed name: _____ Title: _____

Acknowledged — Title Company (acknowledgment requested; refusal or failure to sign is not a condition to closing and does not excuse the fee)

By: _____ Date: _____

Printed name / title: _____

EXHIBIT A — SUMMARY OF CONSULTANT'S CONTRACT WITH RECORD OWNER

Required by Section 2(b). This Agreement may not be executed or delivered to the Title Company without this Exhibit completed.

Record owner (seller under Consultant's contract):

Buyer under Consultant's contract: SPC Homes LLC

Property: 3011 Harlan Dr, Mesquite, Texas 75150, Dallas County, Texas

Date of Consultant's contract: _____

Nature of Consultant's interest: equitable interest only under a contract to purchase; Consultant does not and will not hold legal title.

Memorandum, affidavit or notice of that contract filed of record: ☐ None ☐ Filed — county and instrument no.: _____ (to be released as required by Section 2(b))

Consultant initials: _____ Client initials: _____

EXHIBIT B — WRITTEN DISCLOSURE DELIVERED TO SELLER

Required by Section 2(d). Attach a copy of the written disclosure delivered to the record owner at or before execution of Consultant's contract, signed or initialed by Seller, stating that Consultant holds or will hold only an equitable interest under a contract to purchase, that Consultant does not and will not hold legal title, that Consultant may sell, assign or release that interest to a third party for a profit, and that Consultant is not a licensed real estate broker or sales agent.

Date delivered to Seller: _____ Seller signature/initials on attached disclosure: ☐
Yes ☐ No

Consultant's failure to attach this Exhibit voids the Consultation Fee.

Consultant initials: _____ Client initials: _____